

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Filed: _____

JUAN ORDONEZ,

INDEX NO.

Plaintiff,

Plaintiff designates New
York County as the place of
trial.

-against-

THE NEW YORK CITY POLICE DEPARTMENT, THE CITY
OF NEW YORK, P.O. "JOHN" CAVANETTI (first name fictitious
and shield number unknown), P.O. "JOHN" HARRIGAN (Shield
#2217, first name fictitious) and POLICE OFFICERS "JOHN or
JANE DOES" (identities unknown at this time),

S U M M O N S

The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of this
summons is complete if this summons is not personally delivered to you within the State of New
York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
November 4, 2020

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza

Room 300

New York, New York 10038

P.O. "JOHN" CAVANETTI (Shield number unknown)

14th Precinct

Midtown South

357 W 35th Street

New York, NY 10001

P.O. "JOHN" HARRIGAN (Shield #2217)

14th Precinct

Midtown South

357 W 35th Street

New York, NY 10001

,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JUAN ORDONEZ,

Plaintiff,

-against-

THE NEW YORK CITY POLICE DEPARTMENT, THE CITY
OF NEW YORK, P.O. "JOHN" CAVANETTI (first name fictitious
and shield number unknown), P.O. "JOHN" HARRIGAN (Shield
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JANE DOES" (identities unknown at this time),

Defendants.

INDEX NO.

VERIFIED COMPLAINT

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, JUAN ORDONEZ, at all times herein mentioned was and still is a
resident of the County of Bronx and the State of New York.

2.. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal
corporation, incorporated pursuant to the laws of the State of New York, which operates the New
York City Police Department (hereinafter "NYPD"), and as such is the public employer of the
Defendant officers herein.

3. Defendant P.O. "JOHN" CAVANETTI (hereinafter "CAVANETTI") was a
NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant
and/or employee of Defendant CITY and within the scope of her employment.

4. Defendant P.O. "JOHN" HARRIGAN (hereinafter "HARRIGAN") was a NYPD
police officer, and at all times relevant hereto, acted in that capacity as agent, servant and/or
employee of Defendant CITY and within the scope of her employment.

5. Defendant POLICE OFFICERS "JOHN" or "JANE" DOES were NYPD police officers, and at all times relevant hereto, acted in that capacity as agents, servants and/or employees of Defendant CITY and within the scope of their employment.

5. On or about May 26, 2019, the defendant CAVANETTI was assigned to the 14th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

6. On or about May 26, 2019, the defendant HARRIGAN was assigned to the 14th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

7. On or about May 26, 2019, the defendant POLICE OFFICERS "JOHN" or "JANE" DOES were assigned either the to the 14th Precinct of the NYPD at the time of the occurrences alleged in this complaint. They are being sued in both their individual and official capacities.

8. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

9. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

10. At all relevant times, the defendant NEW YORK was responsible for the training of its police officers, and more particularly, the individually named defendants CAVANETTI,

HARRIGAN and "JOHN" and "JANE" DOES.

10. On May 26, 2019, the plaintiff JUAN ORDONEZ was walking eastbound on West 42 Street towards Eighth Avenue with some friends to take the subway home, when they were approached by several uniformed police officers, separated and questioned individually.

11. Plaintiff, who was smoking marijuana, was approached by CAVANETTI who asked him to put out "the joint," asked for his identification and questioned him about possession of a weapon. Plaintiff complied with all requests and advised the officer that he did not possess a weapon. CAVANETTI searched him and found additional marijuana. CAVANETTI handcuffed Plaintiff, at which time additional police officers arrived.

12. HARRIGAN and several other officers forcefully pushed Plaintiff to the ground during which time Plaintiff's hand struck the railing at the entrance to the subway station.

13. An ambulance arrived and transported Plaintiff and HARRIGAN to Bellevue Hospital. Plaintiff complained that the handcuffs were too tight and causing pain, but those complaints were ignored. At the hospital, there were several additional police officers there. The nurse had the officers remove the handcuffs so that Plaintiff could be examined and sent for x-rays. When Plaintiff returned from x-rays, the officers were no longer there.

14. Plaintiff called 911 while in the hospital and two police officers from IAB came to the hospital to question him. They told him to go home and someone would be in touch with him. Plaintiff took the subway home and after being home for a short while some investigators came to his home; recorded their conversation and had Plaintiff look at a photo array. Plaintiff was able to identify approximately four of the officers involved.

15. On May 26, 2019, plaintiff was given a Summons by HARRIGAN for Violation of 721.05 (possession of marijuana).

16. The Summons was dismissed on or about August 5, 2019.

17. The Plaintiff is unable to identify at this time the names of any of the other individual officers involved, other than he believes that there were officers from the 14th Precinct.

18. On May 26, 2019, there were multiple police officers who were present in the location, witnessed the incident and failed to intervene.

19. Plaintiff JUAN ORDONEZ was diagnosed with a fracture of the right hand requiring surgical repair June 5, 2019, as well as, multiple contusions and abrasions about his head, back and body.

20. On May 26, 2019, the plaintiff JUAN ORDONEZ was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendants CAVANETTI and HARRIGAN.

21. On May 26, 2019, plaintiff JUAN ORDONEZ was caused to suffer severe personal injuries.

22. Prior to the commencement of this action, a notice of claim in writing was served on behalf of JUAN ORDONEZ, upon THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

23. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of JUAN ORDONEZ, upon THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

24. Within ninety days (90) of May 26, 2019, a notice of claim in writing was served on behalf of JUAN ORDONEZ, upon THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

25. Prior to the commencement of this action, notice of the intention of JUAN ORDONEZ to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of JUAN ORDONEZ upon THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

26. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT neglected and has refused to pay said claim or adjust same.

27. A hearing pursuant to General Municipal Law 50-h has been held.

28. This action is commenced within one (1) year and ninety (90) days from May 26, 2019, the date the accident as herein set forth occurred, as tolled pursuant to Executive Order 202.14 as extended by 202.27, 202.28, 202.38, 202.48, 202.55, 202.60 and 202.67.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JUAN ORDONEZ

Pursuant to §1983 (EXCESSIVE FORCE)

29. Paragraphs 1 through 28 are hereby realleged and incorporated by reference herein.

30. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

31. That Defendants had no legal cause or reason to use excessive force in effectuating JUAN ORDONEZ's arrest or after JUAN ORDONEZ was arrested and in custody.

32. That Defendants violated JUAN ORDONEZ's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.

33. That at the time of the arrest or while in custody, JUAN ORDONEZ did not pose a threat to the safety of the arresting officers.

34. That JUAN ORDONEZ was not actively resisting arrest or attempting to evade arrest.

35. That Defendant CITY, through its officers, agents, and employees, unlawfully subjected JUAN ORDONEZ to excessive force while effectuating his arrest.

36. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

37. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of JUAN ORDONEZ's rights, subjected JUAN ORDONEZ to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

38. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of JUAN ORDONEZ's civil rights, including but not limited to the right to be free from the application of excessive force.

39. That upon information and belief, in 2019, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

40. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

41. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

42. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of JUAN ORDONEZ's rights alleged herein.

43. By reason of the foregoing, JUAN ORDONEZ suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

44. The aforementioned use of excessive force in effectuating the arrest and detention of the plaintiff by CAVANETTI, HARRIGAN and unknown officers "JOHN" or "JANE" DOES, violated the plaintiff's constitutional rights.

45. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

46. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of New York, and under the authority of their office as police officers for such city and county.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JUAN ORDONEZ
Pursuant to State Law (EXCESSIVE FORCE)

47. Paragraphs 1 through 46 are hereby realleged and incorporated by reference herein.

48. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure.

49. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

50. That Defendants had no legal cause or reason to use excessive force in effectuating JUAN ORDONEZ's arrest or after JUAN ORDONEZ was arrested and in custody.

51. That at the time of the arrest, JUAN ORDONEZ did not pose a threat to the safety of the arresting officers.

52. That JUAN ORDONEZ was not actively resisting arrest or attempting to evade arrest.

53. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

54. That by reason of Defendants acts and omissions, Defendants, acting under color of state law and within the scope of their authority, in gross and wanton disregard of JUAN ORDONEZ's rights, subjected JUAN ORDONEZ to excessive force while effectuating his arrest, in violation of the laws of the State of New York.

55. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of JUAN ORDONEZ's civil rights, including but not limited to the right to be free from the application of excessive force.

56. By reason of the foregoing, JUAN ORDONEZ suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JUAN ORDONEZ
Pursuant to State Law (Assault and Battery)

57. Paragraphs 1 through 56 are hereby realleged and incorporated by reference herein.

58. That Defendants intended to cause harmful bodily contact to JUAN ORDONEZ.

59. That Defendants, in a hostile manner, voluntarily caused JUAN ORDONEZ'S injuries.

60. That Defendants' contact with JUAN ORDONEZ constituted a battery in violation of the laws of the State of New York.

61. That by reason of the foregoing, JUAN ORDONEZ suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A FOURTH CAUSE OF ACTION
Pursuant to §1983 (FAILURE TO INTERVENE)

62. Paragraphs 1 through 61 are hereby realleged and incorporated by reference herein.

63. That Defendants failed to intervene when Defendants knew or should have known that JUAN ORDONEZ's constitutional rights were being violated.

64. That Defendants had a realistic opportunity to intervene on behalf of JUAN ORDONEZ, whose constitutional rights were being violated in their presence.

65. That a reasonable person in the Defendants' position would know that JUAN ORDONEZ's constitutional rights were being violated.

66. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of JUAN ORDONEZ's rights, deprived JUAN ORDONEZ of his liberty when they failed to intervene to protect him from Defendants' use of excessive force and cruel and unusual punishment, in violation of JUAN ORDONEZ's rights pursuant to the Fourth and Eighth Amendments of the United States Constitution.

67. That upon information and belief, Defendants had a policy and /or custom of failing to intervene to protect citizens from excessive force by corrections officers. Thus, as a

result of the above described policies and customs, JUAN ORDONEZ was not protected from Defendants' unconstitutional actions.

68. That by reason of the foregoing, JUAN ORDONEZ suffered physical and psychological injuries, traumatic stress, mental anguish, economic damages including attorney's fees.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JUAN ORDONEZ
Pursuant to State Law (Negligence)

69. Paragraphs 1 through 68 are hereby realleged and incorporated by reference herein.

70. That Defendants were reckless, careless, and indifferent to JUAN ORDONEZ's physical well-being while JUAN ORDONEZ was in Defendants' custody.

71. That Defendants had a duty to exercise reasonable care to secure the safety of JUAN ORDONEZ from injury while in Defendants' charge.

72. That Defendants breached their duty to JUAN ORDONEZ when Defendants failed to exercise reasonable care to secure the safety of JUAN ORDONEZ while in Defendants' charge, or when Defendants discontinued their aid or protection of JUAN ORDONEZ and left JUAN ORDONEZ in a worse position than when Defendants took charge of him.

73. That by the actions described above, defendants jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff.

74. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

75. As a result of the foregoing, JUAN ORDONEZ was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured. All of said injuries may be permanent.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JUAN ORDONEZ
Pursuant to State Law (RESPONDEAT SUPERIOR)

76. Paragraphs 1 through 75 are hereby realleged and incorporated by reference herein.

77. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.

78. That at all times Defendants were acting within the scope of their employment.

79. That Defendant CITY was able to exercise control over Defendants activities.

That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior.

80. All of said injuries may be permanent. By reason of the foregoing, JUAN ORDONEZ suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAHIL JAMES
Pursuant to § 1983 (FALSE ARREST)

81. Paragraphs 1 through 80 of this complaint are hereby realleged and incorporated by reference herein.

82. That Defendants had neither valid evidence for the arrest of JUAN ORDONEZ nor legal cause or excuse to seize and detain him.

83. That in detaining JUAN ORDONEZ and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. JUAN ORDONEZ was but one of those persons.

84. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

85. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

86. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of JUAN ORDONEZ's rights alleged herein.

87. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of JUAN ORDONEZ's rights, subjected JUAN ORDONEZ to an unlawful detention, in violation of the

Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

88. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of JUAN ORDONEZ's civil rights, including but not limited to the right to be free from being falsely arrested.

89. By reason of the foregoing, JUAN ORDONEZ suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A EIGHTH CAUSE OF ACTION

ON BEHALF OF PLAINTIFF JAHL JAMES

(Pursuant to State Law (FALSE ARREST))

90. Paragraphs 1 through 89 of this complaint are hereby realleged and incorporated by reference herein.

91. Plaintiff was arrested, held in custody, restrained of his liberty and forced to spend hours incarcerated.

92. This arrest and detention was made without warrant or other legal process and was unlawful, wrongful, malicious and without right in that no crime had been committed and in that there was no reason or cause for belief that plaintiff had committed any crime.

93. In doing all the acts and things aforesaid, defendants acted willfully, maliciously and without right, reason or probable cause.

94. Defendants, their agents, servants and/or employees wrongfully caused plaintiff to be arrested, jailed and charged with a crime.

95. Said false arrest and false imprisonment of plaintiff and the ensuing restraint of his liberty caused him great humiliation and as a result of which he has been damaged.

96. Prior to the arrest, plaintiff had enjoyed a good reputation in the City and State of New York.

97. The charges against plaintiff were wholly dismissed.

98. By reason of the foregoing false arrest, plaintiff's health was impaired; plaintiff suffered great mental distress, indignity and humiliation; his reputation and character were injured; his earning power permanently impaired.

99. Due to the foregoing, plaintiff is entitled to damages.

WHEREFORE, Plaintiff JUAN ORDONEZ respectfully requests that judgment be entered:

1. Awarding PLAINTIFF JUAN ORDONEZ compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding PLAINTIFF JUAN ORDONEZ punitive damages in an amount to be determined by a jury;
3. Awarding PLAINTIFF JUAN ORDONEZ interest from May 26, 2019;
4. Awarding PLAINTIFF JUAN ORDONEZ reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York
November 4, 2020

Roberta D. Asher

By: Roberta D. Asher
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff

111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JUAN ORDONEZ,

Plaintiff,

-against-

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Defendants.

INDEX NO.

**ATTORNEY'S
VERIFICATION**

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and belief
and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the County
of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge
are correspondence had with the said plaintiff, information contained in the said plaintiff's file,
which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York

November 4, 2020

Roberta D. Asher

ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By: ***Roberta D. Asher***

Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the within named Court on , 2020 .

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the

of the within named Court, at , New York, on , 2020 , at 9:30
A.M.

Dated: